

Madhuri Devi v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 February 2024 · 2024:AHC:23721-DB · Writ-C No. 3847 of 2024 · **Writ disposed; consumer relegated to clause 6.5.**

HEADNOTE

A consumer who challenges an electricity bill of Rs.1,87,250 in a writ without first invoking clause 6.5 of the U.P. Electricity Supply Code, 2005, is relegated to that remedy. The licensee must decide the representation after hearing, with expedition. The bill itself is not adjudicated.

FACTUAL SUMMARY

Madhuri Devi received an electricity bill for Rs.1,87,250 from U.P. Power Corporation Limited and three other respondents, annexed as Annexure-3 to her writ. She filed Writ-C No. 3847 of 2024 in the Allahabad High Court challenging that demand. The record showed she had come directly to the writ court and had not first taken the bill to the respondents under the Supply Code, which requires them to decide such a representation after giving her a hearing.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

alternate remedy against a disputed electricity bill

HOLDING

A consumer aggrieved by an electricity bill must first resort to clause 6.5 of the U.P. Electricity Supply Code, 2005. She may approach the licensee under that clause, and the licensee must decide the representation after affording an opportunity of hearing, with expedition. A writ filed without that remedy is disposed of with a direction to follow clause 6.5. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

The consumer filed a writ against a bill of Rs.1,87,250 without first invoking clause 6.5. The petition was disposed with liberty to approach the respondents under that clause, who must decide it after hearing and with expedition. ¶ 3-5

6.5-representation-as-appropriate-remedy

The appropriate course against the disputed bill is a representation to the licensee under clause 6.5, to be decided after an opportunity of hearing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL OF RS.1,87,250 IS CORRECT.

Left to the respondents to decide under clause 6.5 after hearing. ¶ 2-5